

23STCV11408 23STCV11408

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Case Number: 23STCV11408 Hearing Date: August 19, 2026 Dept: 408

Defendant/Cross-Complainant

Richard M. Spiker's Motion for Leave to File First Amended Cross-Complaint is GRANTED.

I.

BACKGROUND

On May 19, 2023, Plaintiff Talent

Management Partners, Inc. ("TMP") filed a complaint against Defendants Richard M. Spiker ("R. Spiker") and Steven M. Spiker ("S. Spiker") (collectively, "Defendants") alleging causes of action for:

1. Declaratory Relief;
2. Breach of Fiduciary Duty;
3. Conversion; and
4. Constructive Trust.

On August 31, 2023, the court overruled S. Spiker's Demurrer to TMP's complaint.

On September 11, 2023, S. Spiker filed an answer to TMP's complaint.

On September 18, 2023, at the request of TMP, the Clerk's office entered default against R. Spiker.

On October 30, 2023, pursuant to stipulation, the court vacated the default entered against R. Spiker.

On November 1, 2023, R. Spiker filed an answer to TMP's complaint and a cross-complaint against Cross-Defendants TMP and Kevin Crissman ("Crissman") (collectively, "Cross-Defendants") alleging causes of action for:

1. Conversion;

2. Interference with Contract;

3. Breach of Fiduciary Duties;

4.

Breach of Contract; and

5.

Declaratory Relief.

On November 29, 2023, Cross-Defendants' filed an answer to R. Spiker's cross-complaint.

On November 17, 2025, the court denied R. Spiker's Motion to Disqualify Counsel for TMP.

On April 1, 2026, R. Spiker filed this Motion for Leave to File a First Amended Cross-Complaint. On August 5, 2026, TMP filed an opposition. As of August 13, 2026, no reply has been filed.

On May 21, 2026, the court granted R. Spiker's Motion to Disqualify Counsel for Crissman.

II.

LEGAL

STANDARD

Under

Code of Civil Procedure section 473(a)(1), “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc., § 473, subd. (a)(1).) Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.)

“[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 [internal citations omitted].) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend[.]” (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A

motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, Rule 3.1324, subd. (a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, Rule 3.1324, subd. (a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

III.

DISCUSSION

R.

Spiker seeks leave to file a first amended cross-complaint to include an additional cause under California Corporations Code section 709 arguing that such claim is necessary to determine stock ownership over TMP and the validity of its board elections, (Motion, at p. 3.) R. Spiker argues that there is no prejudice arising from the amendment and that the amendment will allow the efficient adjudication of the core issues of the instant action. (Id., at pp.

4-6.)

In

opposition, TMP concedes to allowing the proposed amendment. (Opp., at p. 2.)

However, TMP requests that the court expedites a hearing on the Section 709 matter following limited discovery on this issue alone and suspend all other discovery. (Ibid.)

The

court finds that R. Spiker complies with the requirements of Rule 3.1324 by providing a copy of the proposed first amended cross-complaint, identifying the changes to be made, and a supporting declaration stating why the amendment is necessary. (Sabovich Decl., ¶¶ 2-6, Exhs. A-B.) The court also notes that the parties do not oppose the proposed amendment.

Accordingly,

the motion is granted. The court will inquire at the hearing regarding TMP's proposed sequencing of discovery and the bifurcation of the Section 709 issue.

IV.

CONCLUSION

Defendant/Cross-Complainant

Richard M. Spiker's Motion for Leave to File First Amended Cross-Complaint is GRANTED.